

(37)

Intended Ruling

Re: **Noah Williams**
Superior Court Case No. 26CU02276

Hearing Date: September 1, 2026 (Dept. 502)

Motion: Expedited Petition to Compromise Claim of Minor

Tentative Ruling:

To deny the petition, without prejudice, for the reasons explained below. In the event that oral argument is requested the minor is excused from appearing.

If oral argument is timely requested, it will be entertained on Thursday, September 3, 2026, at 3:30 p.m. in Department 502.

Explanation:

As identified in the Intended Ruling issued August 24, 2026, according to the petition, the minor has fully recovered from injuries. However, there is no description of the minor's injuries nor is there a doctor's report of the minor's condition reflecting that he has recovered. There are no medical records provided, no description of any medical treatment received as a result of the accident, and no well-child medical reports after the accident.

The Petition requests expenses in the amount of \$730 from the settlement including \$480 in filing fees and \$250 in administration fees. There is no explanation for why the filing fees exceed the standard filing fees. There is no explanation for what administration fees include. The court does not intend to approve charges against the minor's recovery that are unreasonable. (Prob. Code, § 3601.)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img **on** 8-27-26.
(Judge's initials) (Date)

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Tentative Ruling

Re: **Ortiz v. Aguilar et al.**
Superior Court Case No. 23CECG00742

Hearing Date: September 1, 2026 (Dept. 502)

Motion: By Defendant Kiavi Funding, Inc., to Dismiss the First Amended Complaint as to Kiavi Funding, Inc.

Tentative Ruling:

To grant and dismiss the first amended complaint with prejudice as to defendant Kiavi Funding, Inc. Defendant Kiavi Funding, Inc., shall submit to this court, within seven days of service of the minute order, a proposed judgment dismissing the action against them. (Code Civ. Proc., § 581, subd. (f).)

**If oral argument is timely requested, it will be entertained on
Thursday, September 3, 2026, at 3:30 p.m. in Department 502.**

Explanation:

Defendant Kiavi Funding, Inc. ("Defendant") moves to dismiss the case against them brought by plaintiffs Frank Aguilar and Louisa Ortiz ("Plaintiffs") under Code of Civil Procedure section 581, subdivision (f)(2).

Code of Civil Procedure section 581, subdivision (f) states in pertinent part, "The court may dismiss the complaint as to that defendant when...(2)... after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal."

On January 29, 2026, Defendant's demurrer to Plaintiffs' first amended complaint was sustained with ten days leave to amend. Plaintiffs have not filed a second amended complaint. Accordingly, Defendant's motion to dismiss is granted and the case against Defendant dismissed with prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: Img on 8-30-26.
(Judge's initials) (Date)